



CHAPTER ix.

An Act to confer further powers upon the lord mayor aldermen and citizens of the city of Belfast with reference to their gas undertaking and for other purposes. A.D. 1912.
[25th June 1912.]

WHEREAS the city of Belfast (in this Act called "the city") is a county borough subject to the Acts relating to municipal corporations in Ireland and the lord mayor aldermen and citizens of the city (in this Act called "the Corporation") acting by the council are the urban sanitary authority for the district thereof:

And whereas the Belfast Gaslight Company were authorised by the Belfast Gas Acts 1852 1865 1866 and 1873 to supply gas in the borough of Belfast as it then existed:

15 & 16 Vict. c. xv.
28 & 29 Vict.
c. xevi.
29 & 30 Vict.
c. lxii.
36 & 37 Vict.
c. lxxxix.

And whereas under powers conferred by the Belfast Corporation Gas Act 1874 (hereinafter referred to as "the Act of 1874") the Corporation acquired the undertaking of the said Belfast Gaslight Company and were authorised to supply gas within the borough of Belfast as the same then existed:

37 & 38 Vict.
c. cxxv.

And whereas by the Belfast Corporation Act 1896 the area of the city was extended and it was provided that the provisions of the local Acts (which expression as therein defined included the Act of 1874) should extend and apply throughout the city as so extended:

59 & 60 Vict.
c. cxxlvi.

And whereas the Corporation are now supplying gas within the city and the demand for a supply of gas is increasing and it is expedient that the Corporation should be authorised to acquire and to use for the purposes of gasworks certain lands adjoining and in proximity to the existing gasworks:

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And whereas it is expedient that further powers in relation to the gas undertaking should be conferred upon the Corporation as in this Act specified:

And whereas it is expedient that further borrowing powers be conferred on the Corporation:

And whereas it is expedient that the other provisions in this Act contained should be sanctioned:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

And whereas an estimate has been prepared by the Corporation of the cost of constructing the works by this Act authorised and of giving effect to other purposes of this Act including the amount necessary for the purchase of such of the lands as are required to be purchased for those purposes and the amount required for the general purposes of the gas undertaking of the Corporation and such estimate amounts to the sum of four hundred thousand pounds:

And whereas the works included in such estimate are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas an absolute majority of the whole number of the council at a meeting held on the first day of December one thousand nine hundred and eleven after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Belfast Evening Telegraph a newspaper published and circulating in the city (such notice being in addition to the ordinary notices required for summoning such meeting) resolved that the expense in relation to promoting the Bill for this Act should be charged on the gas fund:

And whereas such resolution was published twice in the said newspaper and has received the approval of the Chief Secretary and so far as relates to matters within their jurisdiction the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the first day of January one thousand nine hundred and twelve being not less than fourteen days after the deposit in Parliament of the Bill for this Act:

And whereas the persons qualified to vote at an election of the members of the council of the city have by resolution in

the manner provided in the Borough Funds (Ireland) Act 1888 A.D. 1912.
approved of the promotion of the Bill for this Act :

And whereas plans and sections showing the lines situation and levels of the works by this Act authorised and plans showing the lands which may be acquired under the powers of this Act and a book of reference to those plans containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of and describing such lands have been deposited with the clerk of the peace for the county of Antrim and are in this Act referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

1. This Act may be cited as the Belfast Corporation Act 1912 and this Act and the Belfast Local Acts 1845 to 1911 may be cited as the Belfast Local Acts 1845 to 1912. Short title
and citation.

2.—(1) The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) so far as the same are respectively applicable for the purposes of and not varied by or inconsistent with this Act are hereby incorporated with this Act and for the purposes of such incorporation the Railways Act (Ireland) 1851 and the Acts amending the same shall be read and have effect as if the Corporation were a railway company the works by this Act authorised were railways and the lands authorised to be acquired were required for the purposes of a railway. Incorporation of general Acts.

(2) The following Acts so far as the same are applicable for the purposes of and so far as not varied by or inconsistent with this Act are also hereby incorporated with and form part of this Act (that is to say) :—

The Gasworks Clauses Acts 1847 and 1871 except sections 30 to 38 (both inclusive) of the former Act Provided that section 13 of the former Act shall be read as if the words “or any premises” were inserted after the words “private building” and as if the words “Provided also that every such contract entered into by the Corporation shall be alike in terms and amount under like circumstances to all consumers” were added at the end of that section.

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Interpreta-
tion.

3. In this Act unless otherwise expressly provided or the context otherwise requires—

Terms to which meanings are assigned by the former Acts or by any Act wholly or partially incorporated with this Act have the same respective meanings unless there be something in the subject or context repugnant to such construction;

“The city” means the city and county borough of Belfast;

“The Corporation” means the lord mayor aldermen and citizens of the city;

“The council” means the council of the city;

“The gas limits” means the limits within which the Corporation are for the time being authorised to supply gas;

“The Local Government Board” means the Local Government Board for Ireland.

Power to
make works.

4. Subject to the provisions of this Act the Corporation may in the lines and situation and according to the levels shown on the deposited plans and sections make and maintain the works in the parish of Shankill and county of Antrim shown on the deposited plans together with any subsidiary works connected therewith and may enter upon take and use such of the lands delineated upon the deposited plans and described in the deposited book of reference as they may require for the purposes of such works.

The works hereinbefore referred to comprise—

Work No. 1 A bridge over the River Blackstaff at a point thereon about $7\frac{1}{2}$ chains westward from the point where the said River Blackstaff joins the River Lagan:

Work No. 2 A bridge over the River Blackstaff at a point thereon about 15 chains westward from the point where the said River Blackstaff joins the River Lagan.

Power to
acquire
lands.

5. The Corporation may subject to the provisions of this Act enter upon take and use the lands described in Part I. of the schedule to this Act so far as those lands are shown on the deposited plans and described in the deposited book of reference.

Power to
erect gas-
works and

6.—(1) Subject to the provisions hereinafter in this section contained the Corporation may upon the lands described in the

schedule to this Act erect gasworks and buildings and make construct lay down and maintain either separately or as part of their gas undertaking retorts gasometers receivers mains pipes machinery and other works and apparatus and may on the said lands manufacture produce convert and store gas and may manufacture produce convert store and sell or dispose of residual substances liquids and products arising in the manufacture of gas by them.

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—
manufacture
and store gas
and residual
products.

(2) The Corporation shall not under the powers of this Act use the lands described in Part I. of the schedule to this Act for the manufacture or storage of gas but may use the same for carrying on any process of manufacture of or dealing with any residual products arising in the manufacture of gas by them or the manufacture of or conversion of such residual products and also for storing any such residual products other than waste materials Provided that any works or apparatus provided for the purposes of this subsection shall be constructed as far as practicable from Cromac Street.

(3) The Corporation shall not under the powers of this Act use the said lands described in Part II. of the said schedule for erecting more than one gasometer or for erecting any buildings for the manufacture of gas other than purifying plant and governor or meter houses Such gasometer shall not be erected so as to be within a line drawn parallel to and at a distance of eighty feet from the southern side of McAuley Street as shown upon the deposited plans nor shall the lands northward of the said line be so used for a storage place for coal or for the deposit of offensive materials or for the erection of purifying plant or other works or plant used for the manufacture of gas.

7. In constructing the works by this Act authorised the Corporation may deviate vertically from the levels shown on the deposited sections to any extent not exceeding five feet:

Power of
deviation.

Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade.

8. Subject to the provisions of this Act any of the works authorised by this Act to be constructed on over or under tidal lands below high-water mark of ordinary spring tides shall be constructed only in accordance with such plans and sections and subject to such restrictions and regulations as previous to such works being commenced have been approved by the Board of

Works below
high-water
mark to be
subject to
approval of
Board of
Trade.

A.D. 1912. Trade in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade.

Any alteration or extension of any such works shall be subject to the like approval.

If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Corporation and the amount of such cost shall be a debt due from the Corporation to the Crown and shall be recoverable as a Crown debt or summarily.

Stopping up certain streets.

9. When and so soon as the Corporation are the owners of the lands on both sides thereof they may close stop up and appropriate the site and soil of the following streets and public places in the city (that is to say):—

Ireland's Court Riley's Court and Riley's Place.

Incorporation of certain sections of Act of 1884 as to lands &c.

10. The following sections of the Belfast Improvement Act 1884—

Section 25 (Errors and omissions in plans &c. to be corrected by justices who shall certify the same);

Section 31 (Power to take easements &c. by agreement);

Section 32 (Compensation may be in land or works);

so far as the same are applicable and not inconsistent with the provisions of this Act shall extend and apply mutatis mutandis to and in relation to the lands to be acquired and the works to be constructed under the powers of this Act.

Limitation of time for compulsory purchase of lands.

11. The powers of the Corporation for the compulsory purchase of lands shall not be exercised after the expiration of three years from the passing of this Act.

Compensation in case of recently altered buildings.

12. In settling any question of disputed purchase money or compensation under this Act the arbitrator shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the twentieth day of November one thousand nine hundred and eleven if in the opinion of the arbitrator the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

13. The Corporation may let either from year to year or for a less period or lease for a term at the best rent that can reasonably be obtained or sell exchange or otherwise dispose of any lands or any part thereof or any buildings acquired or appropriated or erected or provided by them under this Act and not required for the purposes for which the same were acquired and may execute and do any deed act or thing requisite or proper for effectuating any such letting lease sale exchange or other disposition.

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Corporation
may let or
exchange
lands.

14. The Corporation may for the purposes of their gas undertaking purchase and take (by agreement but not otherwise) and may hold in addition to the lands now belonging to them and any lands which they are authorised to take or use under the powers of this Act any lands and hereditaments not exceeding in the whole five acres which the Corporation may require for the purposes of that undertaking but the Corporation shall not create or permit a nuisance on any such lands and no lands shall be used by the Corporation for the purpose of manufacturing gas or residual products except the lands described in the Act of 1874 and in the schedule to this Act.

Power to
purchase
lands by
agreement.

15.—(1) The Corporation shall not under the powers of this Act purchase or acquire any house or houses which on the fifteenth day of December one thousand nine hundred and eleven were occupied either wholly or partially by thirty or more persons belonging to the working class as tenants or lodgers unless and until the Corporation shall have—

Restrictions
on displacing
persons of
working
class.

(A) Obtained the approval of the Local Government Board to a scheme for providing new dwellings for such number of persons as were residing in such houses on the said fifteenth day of December or for such number or proportion of such persons as the Local Government Board shall after inquiry deem necessary having regard to the number of persons on or after that date residing in such houses and working within one mile therefrom and to the amount of vacant suitable accommodation in the immediate neighbourhood of such houses or to the place of employment of such persons and to all the circumstances of the case; and

(B) Given security (if required) to the satisfaction of the Local Government Board for the carrying out of the scheme.

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(2) The approval of the Local Government Board to any scheme under this section may be given either absolutely or conditionally and after the Local Government Board have approved of any such scheme they may from time to time approve either absolutely or conditionally of any modifications in the scheme which may be proposed by the Corporation.

(3) Every scheme under this section shall contain provisions prescribing the time within which it shall be carried out and shall require the new dwellings proposed to be provided under the scheme to be completed and rendered fit for occupation before the persons residing in the houses in respect of which the scheme is made are displaced. Provided that the Local Government Board may dispense with the last-named requirement subject to such conditions (if any) as they may see fit.

(4) Any provisions of any scheme under this section or any conditions subject to which the Local Government Board may have approved of any scheme or of any modifications of any scheme or subject to which they may have dispensed with the requirement mentioned in the last preceding subsection shall be enforceable by a writ of mandamus to be obtained by the Local Government Board out of the High Court.

(5) If the Corporation acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions or displace or cause to be displaced the persons residing in any house or houses in contravention of the requirements of the scheme they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the court may if it think fit reduce such penalty.

(6) For the purpose of carrying out any scheme under this section the Corporation may appropriate any lands for the time being belonging to them or which they may have power to acquire and may purchase such further lands as they may require and sections 202 203 and 214 of the Public Health (Ireland) Act 1878 as amended by any subsequent enactment shall apply to the purchase of lands by the Corporation for the purposes of any scheme under this section as if the scheme were one of the purposes of that Act.

(7) The Corporation may on any lands belonging to them or purchased or acquired under this section or any Provisional

Order issued in pursuance of this section erect such dwellings for persons of the working class as may be necessary for the purpose of any scheme under this section and may sell demise or let or otherwise dispose of such dwellings and any lands purchased or acquired as aforesaid. Provided that all lands on which any buildings have been erected or provided by the Corporation in pursuance of any scheme under this section shall for a period of twenty-five years from the date of the scheme be appropriated for the purpose of such dwellings and every conveyance demise or lease of such lands and buildings shall be endorsed with notice of this enactment. Provided also that the Local Government Board may at any time dispense with all or any of the requirements of this subsection subject to such conditions (if any) as they may see fit. A.D. 1912.

(8) The Local Government Board may direct any inquiries to be held which they may deem necessary in relation to any scheme under this section and for giving effect to any of the provisions of this section and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by the Local Government Board under the Public Health (Ireland) Act 1878.

(9) The Corporation shall pay to the Local Government Board a sum to be fixed by that Board in respect of the preparation and issue of any Provisional Order in pursuance of this section and any expenses incurred by that Board in relation to any inquiries under this section including the expenses of any witnesses summoned by the inspector and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

(10) Any houses purchased or acquired by the Corporation for or in connection with any of the purposes of this Act whether purchased or acquired in exercise of the powers conferred by this Act or otherwise and whether before or after the passing of this Act which may have been occupied by persons of the working class within five years before the passing of this Act and for which houses no substitutes have been or are directed to be provided by any scheme approved by the Local Government Board under the powers of any previous Act relating to the Corporation shall for the purposes of this section be deemed to have been acquired under the powers of this Act and to have been occupied on the said fifteenth day of December by the same number of persons belonging to the working class

A.D. 1912. as were occupying the said houses at the date of their acquisition. Provided that if the Local Government Board are unable to ascertain the number of such persons who were then occupying the said houses the said houses shall be deemed to have been occupied by such number of such persons as in the opinion of the Local Government Board they might have been sufficient to accommodate.

(11) For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "working class" means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income in any case does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

Charges for gas supplied by means of prepayment meters and for hire of meters.

16.—(1) The Corporation may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within their limits of supply through any other kind of meter or by any other method of supply.

(2) The Corporation shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of ten pence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove :

The said charge shall include the providing, letting, fixing, repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Corporation in connection with the meter and fittings.

(3) The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of ten per centum per annum on the cost of the meter.

(4) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

17.—(1) The quality of the gas supplied by the Corporation shall with respect to its illuminating power be such as to produce at the testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871. A.D. 1912.
Testing
quality.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer or the table photometer as may be determined by the Corporation the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light. Provided that the Board of Trade may on the application of the Corporation or any five consumers approve the use of any other burner photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

(3) The Corporation shall within six months after the passing of this Act provide all the apparatus required by this Act for the testing of gas and shall at all times keep the same in proper order and repair.

(4) Section 60 (Illuminating power of gas) and section 62 (The burner) of the Act of 1874 are hereby repealed.

18. In order to enable the Corporation to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect :— As to con-
struction and
placing of
gas pipes &c.
between
mains and
meters.

(1) The Corporation may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer on his own premises either in the first instance or on the occasion of any renewal between the Corporation's mains and the meter so far as such pipes and fittings are intended to be covered over :

(2) The Corporation may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :

(3) The specification shall be published twice in some newspaper circulating within the gas limits and a

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copy thereof shall be kept exhibited in the offices of the Corporation :

- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Corporation's main but within the outside wall of the building :
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Corporation and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Corporation. Any officer of the Corporation duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Corporation's specification or if the meter is not placed as required by this section the Corporation may refuse to supply gas to the premises until the provisions of this section have been complied with :
- (6) Any person to whom the Corporation refuses a supply of gas under the provisions of this section may appeal to a petty sessions court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Corporation's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Power to lay down and utilise pipes for ancillary gasworks purposes.

19. The Corporation may lay down place repair alter remove and renew mains and pipes within the gas limits for the purpose of procuring conducting or disposing of any tar or other materials used by them in or resulting from any manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid shall so far as applicable extend and apply to

the laying down and placing repairing altering or removing and protection of such mains and pipes. A.D. 1912.

20. Every consumer of gas supplied by the Corporation who uses a gas engine shall if required to do so by the Corporation use an effective anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper repair and in default of his so using or keeping such anti-fluctuator in proper repair the Corporation may cease to supply gas to such consumer. The Corporation shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Corporation if the anti-fluctuator be found in proper order but otherwise at the expense of the consumer.

Power to require use of anti-fluctuators for gas engines.

21. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register incorrectly within the meaning of the said Act such incorrect registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter and the charge for gas supplied shall be based upon the amount consumed during the corresponding quarter of the previous year. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Corporation shall be paid by or to the Corporation to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Corporation.

Period of error in defective gas meters.

22. At least twenty-four hours' notice in writing or in person at the gas offices of the Corporation shall be given to the Corporation by every gas consumer before he shall quit any premises supplied with gas by meter by the Corporation and in default of such notice the consumer so quitting shall be liable to pay to the Corporation the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Corporation to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas rent payable to the Corporation.

Gas consumer to give notice to Corporation before removing.

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No penalty for failure to supply gas in case of unavoidable cause.

Notice to discontinue supply of gas.

Power to lay gas pipes in streets not dedicated to public use.

Gas fittings let for hire by Corporation not to be subject to distress &c.

23. No penalty shall be incurred by the Corporation for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by circumstances beyond the control of the Corporation.

24. A notice to the Corporation from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it either be in writing signed by or on behalf of the consumer and sent by post to the Corporation or be given by the consumer personally at the gas offices of the Corporation.

25. The Corporation may on the application of the owner or occupier of any premises within the gas limits abutting on or erected or being erected in any street laid out or made but not dedicated to public use supply such premises with gas and may lay down take up alter relay repair remove and renew in across along or out of such street such pipes and apparatus as may be requisite or proper for furnishing such supply in the same way and to the same extent as if such street had been dedicated to public use.

26.—(1) Any pipes burners meters stoves lamps tubes apparatus fittings and other articles and things (all of which are in this section referred to as "gas fittings") let for hire or provided by the Corporation under the provisions of section 53 of the Act of 1874 shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against any person in whose possession they may be.

(2)—(A) All gas fittings let by the Corporation on hire or provided under any statutory powers shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Corporation.

(B) Nothing in this section shall affect the amount of assessment for rating of any premises upon which any gas fittings are or shall be fixed.

(3) The Corporation shall only be entitled to the privileges and exemptions conferred by this section in respect of such gas fittings as shall have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing

brand or other mark conspicuously impressed or made thereon sufficiently indicating the Corporation as the actual owners thereof. A.D. 1912.

27. If a person requiring a supply of gas from the Corporation has previously quitted premises at which gas was supplied to him by the Corporation without paying to them all gas charges and meter rent due from him to the Corporation, they may refuse to furnish to him a supply of gas until he pays the same. Power to refuse supply to persons in debt for other premises.

28. Where any person has a supply of gas laid on by the Corporation to any premises for which he has at the same time a supply of gas from an installation other than that of the Corporation the Corporation shall be entitled to receive from him as a standing charge in addition to the price of the gas actually supplied to him a fixed sum to be determined by them not exceeding five pounds per annum. Provided always that in determining such fixed sum the Corporation shall have regard to the probable maximum supply of gas which might at any time be required for such premises. Provided also that the Corporation shall not be entitled to any such standing charge as aforesaid in respect of any premises for which the whole supply of gas afforded by them is taken through a meter having a nominal capacity of less than ten lights. Supply of gas where consumer has separate gas installation.

29. Where any person has a supply of gas laid on by the Corporation to any premises for which he has at the same time a supply of electricity either from the Corporation or from an installation other than that of the Corporation the Corporation shall be entitled to charge and receive from him in respect of the supply of gas so laid on such minimum sum as shall be fixed by them not exceeding twenty-five shillings for any one quarter of a year notwithstanding that the ordinary charge for the gas actually consumed in such quarter would amount to a lower sum. Provided always that in fixing the amount of such minimum charge the Corporation shall have regard to the probable maximum supply of gas which might at any time be required for such premises. Provided also that in respect of any premises for which the whole supply of gas afforded by the Corporation is taken through a meter having a nominal capacity of less than ten lights and the supply of electricity is taken from the Corporation no such minimum charge shall be made. Provided also that in respect of any premises for which the whole supply of gas afforded by the Corporation is taken through such a meter Minimum charge for gas laid on to premises having supply of electricity.

A.D. 1912. as aforesaid and the supply of electricity is obtained from an installation other than that of the Corporation the amount of the minimum charge shall not exceed five shillings for any one quarter of a year.

Amendment
of section 51
of Act of
1874.

30. As from the passing of this Act section 51 (Appointment of committees by Corporation) of the Act of 1874 shall be read and have effect as if the words "and the attendance at" and conduct of business at such committees shall be limited "to the members thereof and their officers" had been omitted therefrom.

Power to
borrow.

31.—(1) The Corporation may from time to time in addition to any moneys which they are now authorised to borrow or raise by the creation and issue of Belfast Corporation stock raise by the creation and issue of Belfast Corporation stock in the manner provided by the Belfast Corporation Act 1889 for the following purposes respectively any sum or sums not exceeding the following sums respectively (that is to say):—

For paying the costs of this Act the sums necessary for that purpose;

For and in respect of the works by this Act authorised for the purchase of lands for the construction of gasworks and for other purposes in connection with the gas undertaking of the Corporation any sums not exceeding four hundred thousand pounds.

(2) Money raised under this section shall be applied only to the purposes for which it is authorised to be raised and to which capital is properly applicable and not otherwise.

(3) The amount of the annual sums payable to the loans fund established under the said Act of 1889 towards the redemption and extinction of stock created and issued by the Corporation under this Act shall be such as with accumulations at the rate of three pounds per centum per annum will suffice to redeem at par the stock created for the purpose of paying the costs of this Act within five years from the date of the passing of this Act and the stock created for the other purposes aforesaid within the following periods from the date of creation of such stock (that is to say):—

For the works by this Act authorised and for the purchase of lands within a period not exceeding sixty years;

For the purposes of gasworks within a period not exceeding A.D. 1912.
forty years.

(4) The sums payable to the said loans fund in each year for the payment of dividends on and towards redemption and extinction of the stock created and issued under this Act shall be payable out of the gas fund.

32. All transactions of the Corporation under this Act in respect of the receipt and expenditure of capital whether received by way of loan or otherwise shall be shown in the books and accounts of the Corporation separately from those in respect of revenue. Capital and revenue accounts to be kept separate.

33. The Corporation shall pay the expenses incurred by them in carrying into effect the provisions of this Act other than such expenses as may be properly chargeable to capital account out of the gas fund. Expenses of execution of Act.

34. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons or otherwise in relation thereto shall be paid by the Corporation out of the gas fund of the city but shall be recouped to such fund out of the moneys to be borrowed by the Corporation for the purpose of paying the costs of this Act. Costs of Act.

A.D. 1912.

The SCHEDULE referred to in the foregoing Act.

LANDS ON WHICH THE CORPORATION MAY MANUFACTURE GAS
AND RESIDUAL PRODUCTS AND STORE GAS IN ADDITION TO
ANY LANDS ALREADY AUTHORISED TO BE USED BY THEM FOR
THOSE PURPOSES.

PART I.

Lands in the county of Antrim the parish of Shankill and the townland of Townparks bounded on the south-west by the River Blackstaff on the south-east in part by the North of Ireland Chemical Works in part by premises of Mrs. Kinsman in part by premises of the Radiant Metal Polish and Soap Company and in part by Norton Street or the roadway forming a continuation of that street on the north-east by Raphael Street and on the north-west by Cromac Street and any easements or rights over those lands including the site of the following streets and public places in the said townland viz. Ireland's Court Riley's Court and Riley's Place.

PART II.

Lands in the said townland of Townparks belonging or reputed to belong to the Corporation and used by them for the purposes of an abattoir and store the said lands being bounded on the south-west by the River Blackstaff on the south-east by lands of the Great Northern Railway Company (Ireland) on the north-east by McAuley Street and on the north-west partly by the North of Ireland Chemical Works and partly by Cowan and Company's stables.

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